



**3001 ALOUETTE DRIVE SUITE 300
GRAND PRAIRIE TX 75052
469-348-0042 Fax 469-277-8804**

Purchase Order

ORDER DATE	ORDER NUMBER
11/14/25	P1416144
BILL TO: RJ SCHINNER CO., INC N89 W14700 PATRITA DRIVE MENOMONEE FALLS WI 53051	
Page No. 1 of 3	

VENDOR:
FRESH PRODUCTS, INC.
PO BOX 933189
CLEVELAND, OH 44193
419-531-8472

SHIP TO:
RJ SCHINNER - GRAND PRAIRIE TX
3001 ALOUETTE DRIVE SUITE 300
GRAND PRAIRIE TX 75052
469-348-0042 Fax 469-277-8804

BUYER			REQUIRED DATE	SHIP VIA		
Patrick Sitko			11/28/25	YOUR TRUCK		
ORDER QTY	SHIP QTY	ITEM #	DESCRIPTION	PACK	UNIT PRICE	Net
24	24	3PB-F-20-BX	Fresh Products Para Urinal Block Pink Cherry Scent 3 oz.	12/bx	6.220	149.28
15	15	105G-F-02	Fresh Products Bio Conqueror 105 Enzymatic Liquid 1 Gallon Cucumber Melon Scent	4/cs	41.890	628.35
24	24	3WDS-F-06-BX	Fresh Products Wave 3D Urinal Screen Blue Cotton Blossom Scent	10/bx	15.690	376.56
6	6	EBC-F-04-BX	Fresh Products Eco-Fresh Toilet Bowl Clip Orange Mango Scent	12/bx	17.150	102.90
60	60	4PB-F-20-BX	Fresh Products Para Deodorant Urinal Block Pink Cherry Scent 4 oz.	12/bx	7.340	440.40
3	3	CITP-F-66	Fresh Products Citro Fresh Odor Eliminator 5 Gallon	1/pl	33.610	100.83
12	12	OFB-F-01-BX	Fresh Products Ourfresh w/ Battery Air Freshner Spiced Apple Scent Red	8/bx	27.660	331.92
18	18	OFB-F-06-BX	Fresh Products Ourfresh w/ Battery Air Freshner Cotton Blossom Scent, Blue	8/bx	27.660	497.88
6	6	OFB-F-54-BX	Fresh Products Ourfresh w/ Battery Air Freshner Seaside Breeze Scent, Pink	8/bx	27.660	165.96

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Patrick Sitko		11/28/25		YOUR TRUCK		
ORDER QTY	SHIP QTY	ITEM #	DESCRIPTION	PACK	UNIT PRICE	Net
18	18	OFB-F-72-BX	Fresh Products Ourfresh w/ Battery Air Freshner Coconut Vanilla Scent, White	8/bx	27.660	497.88
2	2	OFCAB-F-000I01	Fresh Products 30-Day Active Air Freshener 4.25" x 2" x 6.37" Black	12/cs	144.760	289.52

Total Pieces: 188

Subtotal 3581.48

1. Please confirm receipt of this order via fax/email within 24 hrs. Any deviation from this order on price, quantity or delivery date must be approved before shipment
2. Please make delivery appts 72 hrs in advance. Telephone number at top of page
3. A shipping manifest or copy of a packing list must be faxed/mailed to the appropriate buyer at least 24 hour before delivery.
4. All deliveries must be Driver-Assist.
5. All product must be barcoded. We reserve the right to debit vendor.
6. This Purchase Order is subject to the Purchase Order Terms and Conditions that accompany this Purchase Order.

Amt Due 3581.48

Purchase Order Terms and Conditions

- 1. Applicable Law; Venue; Definitions.** This Purchase Order is governed by and construed in accordance with the laws of the state of Wisconsin and is between R.J. Schinner Co., Inc., a Wisconsin corporation, (Schinner) and Supplier. The following will be the exclusive venue for any disputes arising out of this Order: Waukesha County Wisconsin, Eastern District of Wisconsin. Supplier means the person or entity to which this Order is addressed. Goods means those articles, materials, equipment or other products described on the front of this Order. Order means this purchase order. Terms means collectively the terms and conditions set forth below and on the front of this Order. Destination means the address for delivery of the Goods.
- 2. Offer; Acceptance.** This Order is an offer to Supplier subject to these Terms and is not an expression or document of acceptance or confirmation by Schinner. All terms and conditions proposed by Supplier inconsistent with or in addition to the Terms are void and will have no effect, unless made in a writing signed by Schinner that specifically identifies the provision of the Terms that is modified. Supplier will be deemed to have accepted this Order on the Terms by either notifying Schinner of its agreement to deliver the Goods or by furnishing of any Goods to Schinner. If this Order is ever construed as Schinner's expression of acceptance of an offer by Supplier, such acceptance is conditional upon Supplier's acceptance of these Terms, even if additional and different from the Terms of Supplier's offer. The parties shall not modify the Terms except in a written document, signed by the parties, that specifically identifies the provision of the Terms that is modified. The failure of Schinner to insist upon performance of this Order to enforce any of the Terms of this Order, or to exercise any right or privilege granted to Schinner under this Order or under law, will not be construed as a waiver of any such right or privilege. Acceptance of the Goods will occur on the earlier of: (i) Schinner providing written notice of acceptance to Supplier; (ii) Schinner's sale of the Goods in its ordinary course of business; or (iii) ninety (90) days following delivery to the Destination. If Supplier fails to meet an appointment to deliver Goods to a Destination, Supplier shall pay Schinner a \$200 missed appointment fee.
- 3. Shipment; Title.** Except as otherwise indicated on the front of this Order, Supplier shall deliver the Goods F.O.B. Destination and shall provide driver assistance in unloading all Goods. Supplier shall make all deliveries in quantities and at times specified in this Order. In each shipment, Supplier shall include an itemized packing list, including: (i) a description of the Goods; (ii) the reference number set forth on the front of this Order; (iii) the shipment date; (iv) Supplier's address; (v) the Destination; and (vi) a designation if Goods are replacements for previously rejected Goods (if applicable). Title to the Goods will pass to Schinner on the date Schinner accepts the Goods. Delivery in accordance with this Order does not constitute acceptance by Schinner under this Order.
- 4. Invoicing.** After each shipment of Goods, Supplier shall send a separate, correct invoice accompanied by a bill of lading, express receipt, or other evidence of delivery. Payment of invoices shall not constitute acceptance of Goods ordered and such invoice remains subject to appropriate adjustment for Supplier's failure to meet the requirements of this Order. Supplier shall include the following information in each correct invoice: (i) Supplier's name and invoice date; (ii) the reference number of this Order; (iii) description, price, and quantity of the Goods actually delivered or rendered; (iv) credits (if applicable); (v) name, (where applicable), title, telephone number, and complete mailing address of responsible official to whom payment is to be sent; and (vi) other substantiating documentation or information as may reasonably be required by Schinner from time to time.
- 5. Right of Set-Off.** In addition to any right of set-off provided by law, all amounts due Supplier will be considered net of indebtedness from Supplier to Schinner, and Schinner may deduct any amount due or to become due from Supplier to Schinner from any amounts due or to become due from Schinner to Supplier.
- 6. Taxes.** Unless Schinner provides Supplier with a valid tax exemption, resell, or direct payment certificate number, Schinner shall pay directly or reimburse Supplier for all taxes, assessments, permits, and fees, however designated, which are levied upon this Order or the Goods to be delivered hereunder, or their use, excluding franchise taxes and taxes upon Supplier's income.
- 7. Warranties; Proprietary Rights; Indemnification.** Supplier expressly warrants to Schinner, its affiliates, assigns, and clients and customers, that all Goods (including replacement Goods): (i) are new, and free from defects in material and workmanship (including damage due to unsatisfactory packaging by Supplier); (ii) comply with Supplier's specifications, drawings and samples; (iii) comply with all applicable laws, rules and regulations orders and standards; (iv) all Goods furnished hereunder are merchantable, suitable for their intended use, and are free from defects in design. The period of the foregoing warranties will be equal to the greater of one (1) year or such period as may be offered by Supplier. Notice of defect may be given to Supplier at any time within the warranty period except that notice of latent defect or one concealed by fraud or such gross neglect as amounts to fraud may be given at any time. At Schinner's option, and without limiting Schinner's other rights and remedies under the Terms, Supplier shall promptly either repair or replace defective Goods at Supplier's expense. Supplier further represents and warrants that: (a) the Goods are not subject to any liens or encumbrances; (b) Supplier has all necessary rights (including title and ownership) to provide the Goods to Schinner under this Order, free of all liens and encumbrances; and (c) the Goods and their sale and use hereunder do not directly or indirectly violate or infringe upon any copyright, patent, trade secret, or other proprietary or intellectual property right of any third party or contribute to such violation or infringement. Supplier's representations and warranties relating to proprietary rights, title, ownership and infringement have no termination or expiration date. Supplier shall indemnify, defend and hold Schinner and end users of the Goods and their respective successors, officers, directors, employees, and agents harmless from and against all actions, claims, losses, damages, liabilities, awards, costs, and expenses (including legal fees and costs) arising out of any breach or claimed breach of any representation, warranty or obligation.
- 8. Termination.** Prior to delivery, Schinner may terminate this Order, in whole or in part, by providing written notice to Supplier and any such termination will not be deemed a breach. Supplier shall refund all amounts paid to Supplier with respect to the canceled Order or returned Goods.
- 9. Confidentiality.** Supplier acknowledges that in the course of performance of its obligations pursuant to this Order, Supplier may have access to Confidential Information of Schinner. Confidential Information means information that is proprietary and not generally available and includes: business and marketing plans; financial information; data; access or security codes; procedures utilized or acquired; business opportunities and operations; customer names, lists and identities; research and development; the terms, conditions and existence of this Order; and any other information designated as confidential by Schinner. Supplier hereby agrees that all Confidential Information communicated to it by Schinner, its affiliates, or customers, whether before or after the date of this Order, is provided in strict confidence, and is to be used only for purposes of Supplier fulfilling its obligations under this Order. Supplier shall not disclose any Confidential Information without the prior written consent of Schinner. Confidential Information excludes any information that: (i) is publicly known or becomes publicly known through no unauthorized act of Supplier; (ii) is rightfully received from a third party (other than a Schinner customer or a Schinner affiliate) without obligation of confidentiality; (iii) is already known by Supplier without an obligation of confidentiality; (iv) is disclosed without similar restrictions by Schinner to a third party (other than a Schinner customer or a Schinner affiliate). Supplier acknowledges that its breach of its confidentiality obligations would cause Schinner irreparable injury for which it would have no adequate remedy at law; accordingly upon any such violation, Schinner will be entitled to injunctive relief in addition to any other remedies to which Schinner may be entitled at law or in equity.
- 10. No Assignment.** No assignment or transfer in whole or in part of this Order is permitted without Schinner's prior written consent.
- 11. Remedies.** The remedies reserved by Schinner in this Order are cumulative and additional to any other remedies provided in law or equity. Schinner will be entitled to recover all of its costs and reasonable attorneys' fees incurred in enforcing its rights under this Order.
- 12. Severability.** If any provision of the Terms is unenforceable to any extent, the remainder of the Terms will not be affected by that unenforceability, and will be enforceable to the fullest extent permitted by law.
- 13. Survival of Terms.** Termination or expiration of this Order for any reason will not release either party from any liabilities or obligations which (i) are set forth in Sections 7 and 9 of this Order, or (ii) remain to be performed or by their nature would be intended to be applicable following any such termination or expiration.
- 14. Entire Agreement; Conflicting Provisions.** This Order, together with the documents referenced herein (which are incorporated by reference), represents the entire agreement of the parties regarding the subject matter hereof and supersedes all other prior written and oral agreements. Any other terms or conditions included in any quotes, acknowledgments, confirmations, bills of lading or other forms utilized or exchanged by the parties will not be incorporated herein or be binding unless expressly agreed upon in writing by authorized representatives of the parties.